

engine and submitted those results to the court without confirming the validity of those case citations.

It is a fundamental duty of attorneys and non-attorneys alike to *read* the legal authorities they cite to determine that the authorities stand for the proposition for which they are cited. The court believes that both attorneys and non-attorneys alike must be on notice that AI engines have a risk of generating false or “hallucinated” results to queries of any kind -- legal citations included -- and that results obtained through AI need to be verified before submission to court. A trip to one’s county law library can help one determine whether citations are *bona fide*, and in addition whether *bona fide* citations are currently “good” law.

The court imposes a sanction of \$50 on Plaintiff, due and payable within 45 calendar days of this order to the Contra Costa Superior Court. In the alternative, Plaintiff may visit a county law library, learn how to verify legal citations with the assistance of a law librarian, and submit a minimum 500 word essay describing how to verify legal citations obtained from AI. In addition to this essay, Plaintiff must also submit a declaration from a law librarian describing under penalty of perjury [1] their name and job, and [2] what resources for verifying legal citations he or she explained to Plaintiff on what date. If Plaintiff opts to submit an essay and a law librarian’s declaration, these documents are due to be filed and served within 45 calendar days of this order. Every county in California has a law library. The law library in Contra Costa County is located at 1026 Escobar Street, Suite 2C, Martinez, CA 94553.

Failure either to pay the sanction or submit an essay and declaration in a timely fashion may result in further monetary sanctions. Forty five days from June 12, 2026 is July 27, 2026.

16. 9:00 AM CASE NUMBER: C26-00225
CASE NAME: MONTE DAVIS VS. VINCENT RODRIGUEZ
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT RE: VINCENT RODRIQUEZ**
FILED BY: RODRIGUEZ, VINCENT
TENTATIVE RULING:

The unopposed motion to set aside the default of Vincent Rodriguez is granted. The default taken on March 16, 2026 is set aside. Defendant Vincent Rodriguez must file a responsive pleading within 15 calendar days of June 12, 2026.

17. 9:00 AM CASE NUMBER: MSC20-00798
CASE NAME: DAVEN VS. WING ENTERPRISES NKA LITTLE GIANT LADDERS SYSTEMS, LLC
HEARING ON ORDER TO SHOW CAUSE IN RE: CONT'D FROM 5/29/26 / WHY SANCTIONS OF
\$2,000.00 SHOULD NOT BE IMPOSED ON PLAINTIFF'S COUNSEL, MICHAEL J. BROWN, FOR FAILURE
TO OBEY COURT ORDERS / CONT'D FROM 5/29/26. SEE M/O
FILED BY:
TENTATIVE RULING:

The court issued a written order to show cause to Michael Brown, counsel for Plaintiff in writing on April 8, 2026.

PLEASE TAKE NOTICE THAT YOU ARE ORDERED TO APPEAR MAY 29, 2026 AT 9:00 a.m. in Department 32 of the above-entitled court at 725 Court Street, Martinez, California, and show cause, if cause there be, why monetary sanctions of up to \$2000 should not be imposed and why the clerk of the court should not be ordered to report your conduct to the State Bar for disobeying an order of the court in cross examining expert witnesses about the content of tenor of any scientific, technical or professional text, treatise, journal or similar publication without first complying with Evid. Code Section 721. Any response to this OSC must be filed and served at least five court days prior to this hearing.

On May 29, 2026, Attorney Brown appeared in Court in person. Counsel Brons for the Defendant appeared by Zoom. A copy of the court's tentative ruling was provided to Attorney Brown, who stated that he had already read it. Attorney Brown conveyed to the court that he was not feeling well, and the court continued the hearing to June 12, 2026.

The court takes judicial notice of the Reporter's Certified and partial transcripts of proceedings from Wednesday, April 1, 2026 outside the presence of the jury*; and Thursday April 2, 2026, the partial Cross Examination of Brian Russell, (Trans. pages 1-39.)

Counsel Brown, in his Response filed May 18, 2026 to the Order to Show Cause admits that during the trial he asked witness Brian Russell "Now are you aware

that Erick Knox published a paper disagreeing with that?” (Response, page 4: 5-6.) In his response, Counsel Brown does not suggest that he complied with Evid. Code Section 721 prior to asking this question. An examination of the partial proceedings from April 2, 2026 reveals he did not. His response makes no mention of the court’s prior admonishments to him on April 1 and on April 2 not to ask a question about any expert research or publication without first satisfying the requirements of Evidence Code 721(b). Counsel Brown attaches no transcript to his Response and does not deny that he had been so admonished. Instead, his Response recounts certain events and simply omits any mention of the court’s admonishments to him about Evidence Code Section 721(b).

Evidence Code Section 721(b) forbids an expert witness from being cross-examined about other research or publications unless one of three specific conditions is met. Section 721(b) provides, in relevant part,

(b) If a witness testifying as an expert testifies in the form of an opinion, he or she may not be cross-examined in regard to the content or tenor of any scientific, technical, or professional text, treatise, journal, or similar publication unless any of the following occurs:

- (1) The witness referred to, considered, or relied upon such publication in arriving at or forming his or her opinion.
- (2) The publication has been admitted in evidence.
- (3) The publication has been established as a reliable authority by the testimony or admission of the witness or by other expert testimony or by judicial notice.

Prior to asking witness Brian Russell on April 2, 2026, “Now are you aware that Erick Knox published a paper disagreeing with that?” Counsel Brown had been admonished at side bar and ordered that he may not mention any studies or publications without first complying with Evid. Code Section 721(b). The court has a clear recollection that counsel Brown in at least two occasions had been instructed that he could not ask about any outside report or study without first complying with Evidence Code Section 721.*

Counsel Brown was first admonished about Evidence Code section 721(b) on April 1, 2026, during his cross examination of defense expert witness Dr. David Fortenbaugh. (Brons Decl., page 2: 3-10; page 3:11-26; page 4:14-17)* As stated

in the Brons Decl., “To my recollection, when Defense counsel Mr. Kronenberg objected, the court halted the proceedings – allowing the jury to leave, Mr. Brown was then admonished not to ask any defense witness about the Article without laying proper foundation. The Court had already ruled what type of evidence the Article was to be used as *i.e.*, that it fell within the scope of CCP Sec. 721, then Mr. Brown was supposed to identify what kind of witness is being provided the document (*i.e.* expert or non-expert), and then identify whether any of the factors under CCP Sec. 721(b) have been satisfied to allow for it to be provided to the witness, or also address whether there was another exception to the rule against hearsay. Mr. Brown did not do any of these steps.” (Brons Decl. Page 4:23 – 5:2.) The court finds the Brons Declaration’s description of the events of April 1, 2026 is consistent with her recollection of the events. On April 1, 2026, Counsel Brown was instructed not to inquire about expert research or studies without complying with Section 721(b) as follows:

The Court: So, Counsel, unless—as we discussed at the bench, unless you meet the requirements of Evidence Code 721(b), it is inappropriate to cross-examine an expert witness on a publication. So unless you can proffer taht you can meet one of the three requirements, I need you to move on.

Mr. Brown: Okay.

(Transcript of Proceedings April 1, 2026, 4:20 p.m., page 1:8-14).

On April 1, 2026, after the jury was excused, Counsel Brown was specifically instructed that attempting to cross-examine a witness specifically about the Erick Knox article was “entirely inappropriate, illegal and barred under the hearsay laws.” The court’s instructions were clear and specific at the end of the day on April 1, 2026. (See colloquy in Transcript from April 1, 2026 pages 5-15.)

The court’s recollection that Counsel Brown was admonished about Evid Code Section 721(b) on April 1, 2026 is also supported by the partial transcript of proceedings on April 2, 2026. As soon as counsel Brown asked the question at issue, and counsel Kronenberg requested a sidebar, the transcript reflects that the court said, “I have made rulings *on this very subject*. You cannot try and backdoor in some kind of outside person’s opinion that has not been properly laid a foundation before the Court. (sic) Erick Knox is not here and you can’t get what

you think his opinions may or may not be into this trial by asking improper questions.” (Trans, page 26: 9-15, emphasis added).

Another transcribed verification of the court’s recollection that she ordered counsel Brown not to ask about any outside expert research or study unless he first complied with Evid Code 721(B) is in a statement by Mr. Kronenberg from the partial transcript of April 2, 2026 proceedings, at page 34:5-18, as follows.

Court: You cannot ask about any expert study or other research unless 721(b) of the Evidence Code has been satisfied. And if you are not sure what those requirements are, then you’d better not ask at all. And I’m going to make *another* order that you cannot ask about any outside expert research or study unless you have, outside the presence of the jury and to the Court’s satisfaction, satisfied Evidence Code 721(b) for cross-examining about an outside expert’s study.

Mr. Brown: Very well.

Mr. Kronenberg: And your Honor, I’m not gonna beat a dead horse. I mean, I understand that you just issued the order. **That is the identical order you issued yesterday. It didn’t work yesterday.**

Trans. Page 34: 5-18 (emphasis supplied).

The court finds by a preponderance of the evidence that attorney Michael Brown, having twice been specifically admonished by the court not to cross examine an expert witness about the content or tenor of any scientific, technical, or professional text, treatise, journal, or similar publication without first complying with Evid. Code Section 721 on Wednesday April 1, 2026 and again at on April 2, 2026, asked witness Brian Russell, “Now, are you aware that Erick Knox published a paper disagreeing with that?” without first complying with section 7231(b). (Trans. Page 26: 1-3.) The court finds that this was a direct violation of the court’s order, committed in open court, on the record, in front of the jury.

The court finds that Counsel Brown’s Response to the OSC is troubling. First, Counsel Brown does not attach any transcripts to his response to the OSC. Second, it appears that Counsel Brown acknowledges that the court’s ruling preventing him from asking Dr. Fortenbaugh on April 1, 2026 about Dr. Knox’s

publication was based on Counsel Brown's failure to comply with Evidence Code section 721. (Response, page 3:17-25) Dr. Fortenbaugh did not refer to, consider or rely on an article by Erick Knox. (Brons Decl., page 3:11-12.) Thus, Counsel Brown admitted that the Court prevented him from inquiring into an article or publication on April 1, 2026 during the testimony of Dr. Fortenbaugh, and further admitted that he was instructed not to violate Evidence Code section 721(b) on April 1, 2026.

The court notes that Counsel Brown does not take acknowledge he directly violated the court's repeated orders to comply with Evidence Code Section 721(b) before asking a witness about any expert research or study. His Response omitted any mention that he had been specifically admonished to comply with Evidence Code Section 721 twice before he asked the question, "Now, are you aware that Erick Knox published a paper disagreeing with that?" And nothing in the record shows any attempt in his questioning to satisfy Section 721(b) prior to asking that question.

The court notes that Counsel Brown does not express remorse for his conduct and his choices. Indeed, Counsel Brown's Response to the OSC does not appear even to acknowledge the reason for the OSC. He does not mention any reasons that would mitigate the seriousness and the brazenness of his conduct.

The court finds that Counsel Brown by his lack of acknowledgment of the reason for this OSC demonstrates that he is at high risk for disobeying a similar court order in the future. In addition to a lack of respect for court orders, this demonstrated a disregard for the fairness of court processes.

The Court imposes a monetary sanction of \$1500 under Code of Civil Procedure 177.5 for violation of a lawful order. This sanction is due and payable to the Contra Costa Superior Court within 30 calendar days of service of notice of entry of order. Further, pursuant to Business and Professions Code Section 6086.7, the Court instructs the clerk of the Court to report these findings and orders to the State Bar of California.

*The court reserves the right to supplement this opinion with additional citations

to the certified transcript from April 1, 2026.

18. 9:00 AM CASE NUMBER: MSC22-00422

CASE NAME: BRADSHAW VS FRANCO HERRERA, IOX, LLC

*HEARING ON MOTION IN RE: STRIKE DEFENDANT'S EXPERTS WHO WERE IMPROPERLY DISCLOSED AS SUPPLEMENTAL EXPERTS.

FILED BY:

TENTATIVE RULING:

Plaintiff's Motion to Strike Defendant's Experts Tom Kelly, Vaness Hill, and Karin Flinn-Fowler is denied.

19. 9:00 AM CASE NUMBER: N26-0028

CASE NAME: CLAIM OF: CODY RENO

*HEARING ON MINOR'S COMPROMISE

FILED BY: RENO, KRISTIN

TENTATIVE RULING:

The Petition for Approval of Minor's Compromise is granted. The court will sign the Order Approving Compromise of Claim or Action for Minor and the Order to Deposit Funds in Blocked Account lodged with the court on January 6, 2026.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C25-02631

CASE NAME: ERQIN ZHANG VS. JAMES FRAZIER, JR.

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS, SET 1

FILED BY: ZHANG, ERQIN

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Erqin Zhang's Motion to Compel Further Responses to Form Interrogatories, Set One, Request for Admissions, Set One, and Request for Production of Documents, Set One, and for Sanctions filed February 2, 2026.

The motion is granted. Defendant is ordered to provide full, code compliant responses to the Form Interrogatories, Requests for Admissions and Requests for